

		Plaintiffs’ Motion to Tax Costs Plaintiffs’ Motion to Tax Costs was filed on October 2, 2025. The Memorandum of Costs was filed and served by Defendants on September 10, 2025, with service by email. Therefore, Plaintiffs had 15 days plus two court days in which to file a motion contesting costs. (Cal. Rules of Court, Rule 3.1700(b)(1); Code Civ. Proc., § 1010.6(a)(3)(B).) Plaintiffs’ deadline was September 30, 2025. Plaintiffs’ Motion to Tax Costs was filed two days late on October 2, 2025. Therefore, the Motion to Tax Costs is DENIED. Based on all the above, Defendants’ Motion for Attorney’s Fees is GRANTED in the amount of \$74,100.00 plus costs of \$3,345.37, along with supplemental fees of \$9,100.00 plus supplemental costs of \$140.68. Defendants’ evidentiary objections to the Declaration of Audrey Reyes-Schiller are OVERRULED. Defendants to give notice
109	Phipps vs. Hyundai Motor America 25-01481884	1. Motion to Compel Arbitration 2. Case Management Conference Defendant Hyundai Motor America (“Defendant”) moves to compel arbitration pursuant to arbitration agreements contained in Plaintiff’s Owner’s Handbook & Warranty Information and the Bluelink Connected Services Agreement. Plaintiff Don Phipps (“Plaintiff”) untimely opposed the motion. The Court notes that the opposition was untimely filed by one Court day. Plaintiff’s counsel submitted a declaration explaining the untimeliness. (ROA 65.) In order to resolve this case on its merits, the Court will consider the late filed opposition. (Rancho Mirage Country Club Homeowners Assn. v. Hazelbaker (2016))

2 Cal.App.5th 252, 262 “[A] trial court has broad discretion to accept or reject late-filed papers.”]; Mackey v. Board of Trustees of California State University (2019) 31 Cal.App.5th 640, 657 [“A trial court has broad discretion under rule 3.1300(d) of the California Rules of Court to refuse to consider papers served and filed beyond the deadline without a prior court order finding good cause for late submission.”].)

For the reasons explained below, the Motion is DENIED.

The Court finds that there is no evidence that Plaintiff assented to the arbitration agreements in the Warranty Handbook or Bluelink Connected Services Agreement.

“[W]hile doubts concerning the scope of an arbitration clause should be resolved in favor of arbitration, the presumption does not apply to disputes concerning whether an agreement to arbitrate has been made.” (Johnson v. Walmart Inc. (9th Cir. 2023) 57 F.4th 677, 680-681 [internal quotations and citations omitted] (Johnson).) “[A]rbitration is strictly a matter of consent ... and thus is a way to resolve those disputes—but only those disputes—that the parties have agreed to submit to arbitration.” (Id. at p. 681; accord, Coinbase, Inc. v. Suski (2024) 602 U.S. 143, 148.) “As ‘arbitration is a matter of contract[,] ... a party cannot be required to submit to arbitration any dispute which he has not agreed so to submit.’ (Johnson, at p. 681 [internal quotations omitted].)

To determine whether the parties have agreed to arbitrate a dispute, federal courts apply state-law principles of contract formation. (Berman v. Freedom Financial Network, LLC (9th Cir. 2022) 30 F.4th 849, 855.)

To form a contract under California law, there must be mutual assent. (Herzog v. Superior Court (2024) 101 Cal.App.5th 1280, 1293-1294; Long v. Provide Commerce, Inc. (2016) 245 Cal.App.4th 855, 862.)

“[M]utual manifestation of assent, whether by written or spoken word or by conduct, is the touchstone of contract.” (Long, at p. 862 [internal quotations omitted].) “Mutual assent is determined under an objective standard applied to the outward manifestations or expressions of the parties, i.e., the reasonable meaning of their words and acts, and not their unexpressed intentions or understandings. The parties’ outward manifestations must show that the parties all agreed ‘upon the same thing in the same sense.’ If there is no evidence establishing a manifestation of assent to the ‘same thing’ by both parties, then there is no mutual consent to contract and no contract formation.” (Herzog, at pp. 1293-1294.)

A signed arbitration agreement is one manner of manifesting consent (see *Binder v. Aetna Life Ins. Co.* (1999) 75 Cal.App.4th 832, 850), but it is not the only manner. “ ‘[I]t is not the presence or absence of a signature which is dispositive; it is the presence or absence of evidence of an agreement to arbitrate which matters.’ [Citation.] Evidence confirming the existence of an agreement to arbitrate, despite an unsigned agreement, can be based, for example, on ‘conduct from which one could imply either ratification or implied acceptance of such a provision.’ ” (*Serafin v. Balco Properties Ltd., LLC* (2015) 235 Cal.App.4th 165, 176.)

Assent, however, requires notice. (*B.D. v. Blizzard Entertainment, Inc.* (2022) 76 Cal.App.5th 931, 944 (*Blizzard*); *Stover v. Experian Holdings, Inc.* (9th Cir. 2020) 978 F.3d 1082, 1086 [“notice—actual, inquiry, or constructive—is the touchstone for assent to a contract”]; see *Herzog, supra*, 101 Cal.App.5th at pp. 1293-1294; *Weeks v. Interactive Life Forms, LLC* (2024) 100 Cal.App.5th 1077, 1089.) “[I]n the absence of actual notice, a manifestation of assent may be inferred from the consumer’s actions ... but any such action must indicate the parties’ assent to the same thing, which occurs only when the [provider] puts the

	consumer on constructive notice of the contractual terms.” (Sellers v. JustAnswer LLC (2021) 73 Cal.App.5th 444, 461 (Sellers); accord, Herzog, at p. 1294.) “[W]hether the terms appear on a physical piece of paper or a computer screen, ‘California law is clear—“an offeree, regardless of apparent manifestation of his consent, is not bound by inconspicuous contractual provisions of which he was unaware, contained in a document whose contractual nature is not obvious.” ’ [Citation.]” (Sellers, supra, at p. 461; accord, Herzog, supra, 101 Cal.App.5th at pp. 1293-1294; Long, supra, 245 Cal.App.4th at p. 862.) Here, nothing shows Plaintiff was put on notice of the arbitration agreement in the owner’s handbook prior to purchasing the vehicle. While Plaintiff may have been aware that a warranty was provided with the purchase of the vehicle, there is no evidence that Plaintiff assented to Defendant’s unexpressed understanding that Plaintiff would be bound by an arbitration agreement. Defendant has therefore failed to demonstrate Plaintiff’s mutual assent to the arbitration agreement in the handbook. (See Esparza v. Sand & Sea, Inc. (2016) 2 Cal.App.5th 781, 790 [holding arbitration agreement unenforceable where offeree lacked a reasonable opportunity to read or learn of the arbitration provision at the time of signing].) For Bluelink Connected Services Agreement, Defendant presents “a redacted spreadsheet containing information from the internal HAEA database record of Plaintiff’s assent to the CSA on June 29, 2022. Column F indicates the version of the CSA that Plaintiff accepted, and Column H indicates the date Plaintiff accepted the CSA. Column G indicates the date Plaintiff first enrolled in Bluelink services. Column K indicates how acceptance of the CSA took place. The abbreviation “DWP” indicates that Plaintiff accepted the CSA using the Dealer-Assisted Enrollment process on the Dealer Web Portal.” (Dee Declaration of Vijay
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Rao, ¶ 19, Ex. A.) Defendant then provides a copy of the CSA and a sample of “the content and general layout that Plaintiff would have seen when he assented to the then-effective CSA on the DWP using the Dealer-Assisted Enrollment process.” (Dee Declaration of Vijay Rao, ¶¶ 19 and 20, Exs. B and C.)

Importantly, Plaintiff’s claims are brought pursuant to statute and are not rooted in Bluelink Connected Services Agreement. Defendant has failed to demonstrate the Bluelink Connected Services Agreement covers Plaintiff’s claims in this case. While the Bluelink Connected Services Agreement purports to cover any and all disputes between the parties regarding “[Plaintiff’s] Vehicle”—the scope of an arbitration clause turns on whether the claims are “rooted” in the contractual relationship between the parties. (Ahern v. Asset Management Consultants, Inc. (2022) 74 Cal.App.5th 675, 692-693.) “[E]ven under a very broad arbitration provision, such as ‘any controversy or claim arising out of or relating to this agreement,’ ” the subject claims must “ ‘have their roots in the relationship between the parties which was created by the contract’ before they can be deemed to fall within the scope of the arbitration provision.” (Rice v. Downs (2016) 248 Cal.App.4th 175, 188.)

As noted by the Supreme Court, Song-Beverly disputes do not flow from the contract between the parties but rather “from obligations imposed by statute” and that such disputes “are not intimately founded in or intertwined with the sales contracts.” (Ford Motor Warranty Cases (2025) 17 Cal.5th 1122, 1126.)

Given the above, the Court finds that (1) Defendant cannot establish that Plaintiff assented to the arbitration agreement in the owner’s handbook and (2) Defendant cannot establish that Plaintiff’s claims have their roots in the relationship between Plaintiff and Defendant which was created by the Bluelink Connected Services Agreement.

		The Motion to Compel Arbitration is DENIED. Defendant shall provide a responsive pleading no later than 10 Court days after notice of this ruling. In addition, because this action was filed on May 9, 2025, the parties shall be prepared to discuss their current compliance and plans to comply with Code of Civil Procedure section 871.26 at the hearing. Plaintiff to give notice.
110	Helberg vs. Santa's Garden, Inc. 25-01428362	Motion for Summary Judgment and/or Adjudication Defendant, Santa’s Garden, Inc. (“Santa’s Garden”), moves for an order granting summary judgment, or in the alternative, summary adjudication as to the Complaint filed by Plaintiff, Heather Helberg (“Plaintiff”). The Motion is DENIED in its entirety. As a threshold matter, this motion is brought only by Defendant, Santa’s Garden, Inc. (“Santa’s Garden”). On March 10, 2026, Santa’s Garden filed a notice of errata correcting that the motion was filed on behalf of Santa’s Garden only. (ROA 66.) Next, the Court disregards the last page of the reply as it exceeds the 10-page limit for replies. (California Rules of Court (“CRC”), rule 3.1113(d).) Santa’s Garden’s Separate Statement of Undisputed Material Facts Plaintiff contends that the motion is fatally procedurally deficient and is in violation of CRC, rule 3.1350(b), (d), and (h), and that the three issues specified in Santa’s Garden’s Separate Statement of Undisputed Material Facts (“SSUMF”) fail to conform to the format required by CRC, rule 3.1350(h).